

for his children out of the settlement funds (*c*). But the decisions in this respect have gone as far as can be justified upon principle (*d*).

[Where there was a power of maintenance in the usual form in the discretion of the trustees, and the trustees without exercising any discretion in the matter paid the whole income to the father of the infant, it was held that the father's estate must account for the income received by him (*e*).

Past maintenance. — Where the father had borrowed money to enable him to keep his infant children at school and was unable to repay the debt, the Court allowed him to be recouped the amount so borrowed as an allowance for past maintenance (*f*).]

33. **After death of father.** — It was formerly much doubted whether after the death of the father maintenance should be granted to the *mother* so long as she continued a *widow* without an inquiry as to her ability (*g*). But it was ruled that *where she had married again* there should be no inquiry as to ability, the second husband being, it was said, under no liability to maintain his wife's children (*h*). It has been since settled that no inquiry as to the mother's ability will be directed even during her widowhood (*i*); and as a widow is undoubtedly liable at law to maintain her children (*j*), the *direction of the inquiry cannot be [*587] regarded as depending upon the *legal liability*. It would seem to follow that the enactment rendering a husband liable to maintain his wife's children by a former marriage (*a*)

(*c*) *Mundy v. Lord Howe*, 4 B. C. C. 223; *Meacher v. Young*, 2 M. & K. 490; *Stocken v. Stocken*, 4 Sim. 152, 2 M. & K. 489, 4 M. & Cr. 95; *White v. Grane*, 18 Beav. 571; *Ransome v. Burgess*, 3 L. R. Eq. 773; *Newton v. Curzon*, 16 L. T. N. S. 696.

(*d*) *Thompson v. Griffin*, Cr. & Ph. 321, *per* Lord Cottenham; [*Wilson v. Turner*, 22 Ch. D. 521;] and see *Re Kerrison's Trusts*, 12 L. R. Eq. 422, the case of a voluntary settlement.

[(*e*) *Wilson v. Turner*, 22 Ch. D. 521.]

[(*f*) *Davey v. Ward*, 7 Ch. D. 754.]

(*g*) As to the mother's right to be recouped for past maintenance of a child, see *Re Cottrell's Estate*, 12 L. R. Eq. 566.

(*h*) *Billingsly v. Crichton*, 1 B. C. C. 268.

(*i*) *Douglas v. Andrews*, 12 Beav. 310; and see the note, p. 311.

(*j*) 43 Eliz. c. 2, s. 6; 4 & 5 W. 4, c. 76, s. 56.

(*a*) 4 & 5 W. 4, c. 76, s. 57.